

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSEPH KALACHY,

Plaintiff(s),

- against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, arresting police officer,
BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090),
arresting police officer/detective, RODRIGO
FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90),
in their official and individual capacity.

Defendant(s).

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Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings as the
place of trial.

The basis of venue is plaintiff's
place of residence.

Plaintiff resides at:
1441 St. John's Place
Brooklyn NY 11213

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York

May 29, 2013

YOURS, ETC.,

SHAPIRO TAMIR LAW GROUP PLLC

30 Broad Street, 14th Floor
New York NY 10004
(212) 444-9974

DEFENDANT'S ADDRESSES:

Corporation Counsel
City of New York Law Department
100 Church Street
New York NY 10007

NYPD Officers, 90 Pct
211 Union Ave
Brooklyn, NY 11211

Notice: The nature of this action is Personal Injuries

The relief sought is as follows:

A sum which exceeds the jurisdictional limits of all lower Courts; together with the costs, disbursements and interest relating to each cause of action;

Upon your failure to appear, judgment will be taken against you by default in an amount which exceeds the jurisdictional limits of all lower Courts, together with the costs, disbursements and interest relating to each cause of action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSEPH KALACHY,

Plaintiff(s),

- against-

Index No.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, arresting police officer,
BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090),
arresting police officer/detective, RODRIGO
FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90),
in their official and individual capacity.

Defendant(s).

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Plaintiff, by his attorneys, **SHAPIRO TAMIR LAW GROUP PLLC** as and for his
Verified Complaint herein, respectfully alleges the following:

1. That at all times hereinafter mentioned, the Plaintiff was and still is a resident of the
County of Kings, State of New York.
2. That upon information and belief, at all the times hereinafter mentioned, the defendant,
THE NEW YORK CITY POLICE DEPARTMENT, was and still is a domestic entity
organized and existing under and by virtue of the laws of the State of New York.
3. That upon information and belief, at all the times hereinafter mentioned, the defendant,
THE NEW YORK CITY POLICE DEPARTMENT, was and still is a domestic entity
organized and existing under and by virtue of the laws of the City of New York.
4. That upon information and belief, at all times hereinafter mentioned, the defendant,
arresting police officer, BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), was and
still is a resident of the County of Kings, State of New York.

5. That upon information and belief, at all times hereinafter mentioned, the defendant, arresting police officer/detective, RODRIGO FONTEBOA, was and still is a resident of the County of Kings, State of New York.
6. That this action is brought by JOSEPH KALACHY for monetary damages for the violation of his Civil Rights pursuant to 42 USC 1983, 1985, 1986, malicious prosecution, false arrest, false imprisonment, intentional infliction of emotional distress, negligent hiring, supervision and retention, Respondeat Superior, loss of future earnings, medical expenses, and attorney's fees.
7. That on January 09, 2013 at approximately 2:00 a.m., at 170 South 4th Street Apt.2, Flr 1, Brooklyn NY 11211, Defendant, arresting police officer, BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), of THE NEW YORK CITY POLICE DEPARTMENT, unlawfully entered the apartment of Plaintiff, JOSEPH KALACHY, and unlawfully detained and arrested Plaintiff, without probable cause. Plaintiff was caused to suffer severe personal injuries, including, but not limited to, psychological and emotional distress of an undetermined permanent extent.
8. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants and/or employees were willful, wanton, malicious, reckless and negligent in performing their duties and in their failure to protect Plaintiff against unlawful seizure; in their failure to adequately train and supervise its personnel; in causing, permitting or allowing an unreasonable restriction of freedom and liberty; in causing, allowing or permitting its personnel to improperly effectuate arrests; in violating Plaintiff's civil and constitutional rights, such that the allegations under which

the arrest was effectuated were found to be unsupported by any facts and such that the Kings County District Attorney declined to prosecute.

9. That while the Plaintiff was in Central Booking, Plaintiff was allegedly served with a Family Court Order of Protection, which was based on the same false and unsubstantiated criminal allegations as the false arrest.
10. That, for the several days following Plaintiff's release from Central Booking after the District Attorney declined to prosecute his criminal case, Plaintiff and his attorneys were repeatedly harassed by Defendant arresting officer/detective RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), with numerous phone calls and messages regarding Plaintiff's alleged violation of said unfounded Family Court Order of Protection.
11. That on January 30, 2013, after a plethora of harassing phone calls by Defendant arresting officer/detective RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), Plaintiff's attorneys personally walked Plaintiff into Precinct 090 to comply with the alleged open 61-warrant for arrest.
12. That on January 30, 2013, the Plaintiff was re-arrested, re-processed and re-charged for a violation of an alleged Family Court Order of Protection which was based on the same false and unsubstantiated criminal allegations as the false arrest.
13. That as a result of the incident, the Plaintiff was caused to sustain serious, severe and permanent personal injuries, including but not limited to, emotional distress and shock, mental anguish, psychological and emotional disturbances, legal expenses, and loss of enjoyment of life, most of which require medical care and treatment and will continue in

the future.

14. That Plaintiff was further caused to sustain serious economic damage and hardship by reason of loss of income, all of which is expected to continue in the future.
15. That the Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, arresting police officer, BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), in their official and individual capacity are herein collectively referred to as "Defendants."

AS AND FOR A FIRST CAUSE OF ACTION

CIVIL RIGHTS VIOLATION
Pursuant to 42 USC 1983, 1985, 1986

16. The plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "15" of the Complaint herein with the same force and effect as if more fully set forth herein.
17. That as a result of the incident, the Plaintiff was deprived of rights, privileges and immunities secured by the Constitution and laws of the United States.
18. That the incident could and should have been prevented by the defendant THE NEW YORK CITY POLICE DEPARTMENT, and as a result of its failure to do so, committed a violation of Plaintiffs Civil Rights.
19. That the foregoing incident and the injuries and damages resulting therefrom were caused solely by reason of the careless, reckless and intentional conduct of the Defendants, their agents, servants and/or employees, and were in no manner caused by the plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

20. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “19” of this Complaint herein with the same force and effect as if more fully set forth herein.
21. That the Defendants played an active role in the unlawful arrests, detentions and subsequent prosecutions of the Plaintiff.
22. That the Defendants did not have probable cause or reasonable grounds to support the Plaintiff’s arrests.
23. That the Defendants prosecuted the criminal case with an improper and unlawful purpose.

AS AND FOR A THIRD CAUSE OF ACTION

FALSE ARREST and FALSE IMPRISONMENT

24. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “23” of this Complaint herein with the same force and effect as if more fully set forth herein.
25. That the Defendants unlawfully restrained the Plaintiff against Plaintiff’s will.
26. That the Defendants unlawfully restrained the Plaintiff without probable cause or reasonable basis, effectively impinging upon his personal liberty and freedom of movement.
27. That as a result of the Defendants unlawfully restraining the Plaintiff, the Plaintiff was falsely arrested and falsely imprisoned.

AS AND FOR A FOURTH CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

28. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “27” of this Complaint herein with the same force and effect as if more fully set forth herein.
29. That the Defendants acted with extreme and outrageous conduct with the intent to cause severe emotional distress.
30. That the Defendants acted with extreme and outrageous conduct with disregard to the substantial probability of causing severe emotional distress.
31. That the Defendants’ extreme and outrageous conduct was the proximate and direct cause of the Plaintiff’s injuries and damages set forth herein.
32. That the Plaintiff suffered severe emotional distress as a result of the Defendants’ extreme and outrageous conduct.

AS AND FOR A FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, SUPERVISION and RETENTION

33. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “32” of this Complaint herein with the same force and effect as if more fully set forth herein.
34. That Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, are responsible for the training, instruction, supervision, discipline, and control of Defendant arresting police officer, BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090) and Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90).

35. Upon information and belief, the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have failed to take reasonable preventative or remedial measures to guard against the conduct of Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090) and Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), including but not limited to failing to give proper training and supervision so as to prevent them from committing unlawful arrests.
36. That, had the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, taken reasonable preventative or remedial measures to guard against the unlawful conduct of Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090) and Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), the Plaintiff would not have been wrongfully and falsely arrested, detained, and imprisoned, or maliciously prosecuted.
37. That the failure of the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, to take reasonable preventative or remedial measures to guard against the unlawful conduct of Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090) and Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), amounted to gross negligence, deliberate indifference, and deliberate misconduct.
38. That the failure of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, directly caused the injuries suffered by Plaintiff.

39. That, as a consequence of the failure of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, the Plaintiff suffered the injuries and damages set forth above.

AS AND FOR A NINTH CAUSE OF ACTION

RESPONDEAT SUPERIOR

40. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “40” of this Complaint herein with the same force and effect as if more fully set forth herein.

41. That Defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is under the direct supervision and control of Defendant THE CITY OF NEW YORK.

42. That Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), was and still is under the direct supervision and control of Defendant, the NEW YORK CITY POLICE DEPARTMENT.

43. That Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), was and still is under the direct supervision and control of Defendant, the NEW YORK CITY POLICE DEPARTMENT.

44. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees.

45. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course

and scope of the duties of Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees.

46. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), his agents, servants and/or employees.

47. That preventing an employee-police officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, NEW YORK CITY POLICE DEPARTMENT.

48. That the injuries sustained by the Plaintiff were due to Defendant, THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

49. That the injuries sustained by the Plaintiff were due to Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

50. That the injuries sustained by the Plaintiff were due to Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's

rights, privileges and immunities secured by the Constitution and laws of the United States.

51. That Defendant THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees must have probable cause or reasonable grounds to support an arrest before making said arrest.
52. That Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
53. That Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
54. That Defendant THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
55. That Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
56. That Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90), his agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
57. That Defendant THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants

and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

58. That Defendant THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

59. That due to the intentional false arrest and false imprisonment of Plaintiff by the Defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

60. That Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

61. That Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

62. That due to the intentional false arrest and false imprisonment of Plaintiff by the Defendant arresting police officer BENJAMIN YOUNG (Shield No.: 5615, Cmd: 090), his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

63. That Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90, his agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

64. That Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90, his agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

65. That due to the intentional false arrest and false imprisonment of Plaintiff by the Defendant arresting police officer/detective, RODRIGO FONTEBOA (Shield No. 5099, Cmd: 303, Pct: 90, his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

66. That by reason of the intentional acts of the Defendants, their agents, servants and/or employees, the Plaintiff was caused to suffer serious and severe permanent injuries and damages causing him psychological and emotional anguish and distress, and requiring medical care and treatment which will continue in the future, and was caused to sustain economic damages by reason of the loss of employment and income which is expected to continue into the future.

WHEREFORE, plaintiff demands judgment against the defendants in a sum which exceeds the jurisdictional limits of all lower courts; together with the costs, disbursements and interest relating to each cause of action, including punitive damages, compensatory damages, nominal damages, and attorney's fees, and for such other and further relief as this court may deem just and proper.

Dated: New York, NY
June 3, 2013

SHAPIRO TAMIR LAW GROUP PLLC
Marisol Ramos, Esq.
Attorneys for Plaintiff(s)
30 Broad Street, 14th Fl
New York, NY 10004
(212) 444-9974 x2029

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

JOSEPH KALACHY, being duly sworn, deposes and says: I am the plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matter therein stated to be alleged on information and belief, and as to those matters I believe it to be true.


JOSEPH KALACHY

Sworn to before me this
5th day of June, 2013


NOTARY PUBLIC

MARISOL RAMOS
NOTARY PUBLIC STATE OF NEW YORK
QUEENS COUNTY
LIC. #02RA6218703
COMM. EXP. 3/8/14